

I. REQUEST

1. The President of the Municipal Chamber of the Municipality of Arganil requested the National Data Protection Commission (CNPd) to issue an opinion on the Draft Amendment to the Regulations of the Municipal Assembly of Arganil, which provides for the filming and audio and video transmission of the sessions of that deliberative body.
2. The request made and this opinion fall within the attributions and competencies of the CNPD, as an independent administrative entity with authority to oversee the processing of personal data, conferred by paragraph c) of no. 1 of article 57, in conjunction with paragraph b) of no. 3 of article 58 and with no. 4 of article 36, all of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (General Data Protection Regulation - GDPR), in conjunction with the provisions of article 3, paragraph 2 of article 4, and paragraph a) of no. 1 of article 6, all of Law no. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II. ANALYSIS

3. The present request for a pronouncement concerns the inclusion, in the Regulations of the Municipal Assembly of Arganil, of a chapter titled "Online Transmission of Sessions," composed of 4 unnumbered articles, entitled "online transmission," "rights of participants," "filming and transmission of sessions," and "compliance with the right to information."
4. The aforementioned project also includes "Annex II," concerning the model of consent declaration to be provided to the data subjects involved.
5. Regarding the transmission on the internet of meetings of municipal bodies, this Commission has already had the opportunity to express itself in general terms, in its Guidance of April 18, 2023, which is available on its website.
6. In that document, the CNPD emphasizes "[...] that the live and online audio and video transmission of meetings of the main municipal bodies constitutes a processing of personal data, under the terms of paragraphs 1) and 2) of article 4 of Regulation (EU) 2016/679, of April 27, 2016 (General Data Protection Regulation - GDPR), as it involves the collection and dissemination of information relating to identified or identifiable individuals. This information includes not only the image of individuals, which also reveals the location and context in which they find themselves at a given moment, but also the content of their statements, which may expose, among other personal data, aspects of the private life of the declarants or third parties and reveal political, philosophical, or other convictions. In this regard, the aforementioned disclosure affects, from the outset, the fundamental rights to image and the protection of personal data (or the right to informational self-determination), and is susceptible, depending on the content of the statements made, to affect the right to privacy – cf. no. 1 of article 26 and article 35 of the Constitution of the Portuguese Republic (CRP). Furthermore, it may also promote or facilitate the stigmatization and discrimination of individuals whose data is thus disclosed, considering the risk of reuse of the personal data exposed on the Internet – it is certain that the exposure of private life is irreversible.", and that "6. It is therefore important, here, in this context, to consider the risks of exposure and improper reuse of the images and statements made by citizens in this context, a consideration that must be made bearing in mind the data protection regime established by the GDPR and Law no. 58/2019, of August 8.
7. As also mentioned in PAR/2024/1 of this Commission, "there is currently, as would be desirable, no legal standard that provides for or regulates the processing of personal data resulting from the transmission on the Internet, whether live or recorded, of interventions in meetings such as those in question, nor does such transmission appear necessary for the realization of the principle of publicity of the meetings of municipal assemblies."
8. On the other hand, the assessment of the necessity of data processing requires considering the impact or risks arising for the rights of data subjects and weighing them against the degree of satisfaction of the purpose of publicity, in comparison with other less impactful means of publicizing the meetings, and because the risk of reuse of those images and statements for any purposes, without the

possibility of control, is very high when they are made available on an open network, it will be necessary to comply with the principles and rules established in the GDPR and to find, from the outset, the legal basis for the processing operations.

9. As also stated in the aforementioned Guidance, it is the understanding of the CNPD that the prior and explicit consent of all individuals covered by the filming and transmission appears as the only condition capable of legitimizing the aforementioned data processing – cf. paragraph a) of no. 1 of article 6 and paragraph a) of no. 2 of article 9 of the GDPR.

10. This consent must meet the requirements of paragraph 11) of article 4 and article 7 of the GDPR (there must be an appropriate means of recording the consent) and, therefore, the need to ensure the right to information referred to in article 13 of the GDPR, highlighting the importance of alerting...

PAR/2024/51

specifically regarding the fact that images and sound, once made available online, are susceptible to reuse and dissemination by third parties, as well as offering an alternative to being filmed, as required by the notion of freedom of consent.

11. It follows that these conditions should be directed to all individuals covered by the filming and transmission, that is, in relation to those who exercise the right to participate in those meetings through mere presence or active intervention, as well as to those who participate in the exercise of their functions during that act, and in relation to the workers who provide support during the meeting.

12. Regarding these individuals, it should be noted that the legal significance of their consent will depend even more evidently on free consent, with the possibility of being guaranteed the alternative of not being filmed, taking into account the imbalance in the relationship between the employer – even if public – and the worker, as the European Data Protection Committee explained in Guidelines 5/2020 regarding consent in the sense of Regulation 2026/6792.

13. The conditions applicable to consent are, in general, provided for in Articles 4, paragraph 11, 6, paragraph 1, letter a), and 7 of the same Diploma, as material elements of lawfulness for the processing of personal data. To that extent, for consent to be a lawful basis for data processing, it must stem from a genuine manifestation of the free will of the data subject – a prerequisite, and not merely an accessory condition, for the lawfulness of that processing – as well as the fact that the data subject has effective/real control over the data.

14. The crucial role of consent – and its regime, which gives it identity – for data processing is highlighted, first of all, in Articles 7 and 8 of the Charter of Fundamental Rights of the European Union (CDFUE), where it is stated, respectively, that “Everyone has the right to respect for their private and family life, their home and their communications.” and that “Everyone has the right to the protection of personal data concerning them. 2. Such data must be processed fairly, for specified purposes, and with the consent of the data subject or on another legitimate basis laid down by law. Everyone has the right to access data concerning them and to have it rectified.”

15. Thus, as the European Legislator states, consent must be free, specific, informed, and unambiguous, concepts that, also constituting evaluative coordinates, require reflection in the concrete processing and respect for the delineation of their particular dimensions.

16. The freedom of consent presupposes a true choice, an autonomous determination and control of the data subjects regarding their rights. As a corollary of this principle, the data subject cannot be coerced in any way to give their consent, nor suffer any negative consequences in the event of not consenting to a certain processing.

17. In other words, consent can never be free if it cannot be refused or withdrawn without detriment to the person exercising it, or if it is obtained under any form of pressure or direct or indirect influence capable of affecting the core configuration of the rights holder. If the full volitional link is disturbed or distorted, the freedom to freely consent will be sacrificed.

18. For this reason, in this sense, consent will also not be free if, in the contextual set of informative elements to be provided to the declarant, that confusion serves a wrong representation of the holder who may have consented based on purposes that are not within the universe of ends to which that consent is actually intended.

19. Furthermore, it is the responsibility of the data controller to demonstrate the conditions of validity of the provision of consent, namely that, in the processing in question, it is possible to withdraw or refuse

consent without the data subject being harmed, for example, without there being a negative consequence regarding their rights in terms of personal data protection.

20. Consent cannot, therefore, be conditional. This means, for example, that consent associated with the acceptance of general conditions or to the execution of a contract or provision of a service that is not necessary for that execution or provision must also be excluded.

21. Simplifying, for this reason, the processing of personal data for which consent is requested cannot serve, either, as it does not confuse the grounds for processing, as a subordinating element of other concessions of rights, under penalty of eliminating, again, the concept of freedom from which it started. That is,

22. For consent to be given freely, the person must be able to choose freely and to refuse or withdraw consent without suffering any disadvantage, factual or legal.

23. Specific consent must only be obtained when data subjects are specifically informed of the intended purposes for the use of the data concerning them, and given in a granular manner for each of those purposes, and its justification must be assessed based on each one.

2v.

PAR/2024/51

24. For all these reasons, it will also be required that the data subject must act deliberately to consent to the processing of their data, as an expression of a “clear affirmative action,” as outlined in Article 4, paragraph 11 of the GDPR.

25. This will have consequences for the observations that will be made below.

That being said,

26. Having gathered the most important aspects of the regime that should govern this data processing, it can be said that, in general, the proposed amendment seeks to address it, particularly regarding the rights of the participants, foreseeing the need for prior and explicit consent from all potential participants, namely local elected officials, municipal workers, as well as citizens exercising the right to participate.

27. It is also foreseen the possibility of suspending the transmission when a citizen wishes to intervene without having consented to the audio and video recording and transmission, as well as ensuring the existence of “an area not covered by image capture.”

28. Likewise, it is foreseen that the transmission will be viewed through the Municipality's institutional website, providing information about the risk of reuse and dissemination by third parties of those images, which may indeed occur, and which should be known to the data subject at the time of giving their free consent.

29. As stated above, however, the right to revoke consent must be provided for, as stipulated in Article 7, paragraph 3 of the GDPR, and it must be “as easy to withdraw as to give,” which is omitted in the Proposal.

30. Regarding the purpose of this data processing, the proposed amendment stipulates that “Any processing of the data collected beyond the purpose of live and deferred audiovisual transmission of the sessions of the Municipal Assembly of Arganil and its permanent availability for consultation or viewing on the Municipality's institutional website is prohibited.”

31. This results in the fact that the transmissions of the sessions of the Municipal Assembly will not only be conducted live or via streaming but can also be viewed at other times, as these contents are stored by the Municipality.

3 It should be noted that the revocation of consent does not affect the lawfulness of processing operations that have already been carried out.

3

PAR/2024/51

32. In this regard, it should be kept in mind the technical and security measures that must be adopted, an obligation that falls on those responsible for the processing, considering that the manner in which the processing is carried out is not merely a secondary aspect of its processing regime, but rather is included in the materiality of its regime. In this sense, the matter contained in Directive/2023/14 of this Commission is invoked, emphasizing the urgency of ensuring its compliance.

33. Therefore, anticipating the storage and availability of contents as described in the Proposal, it is imperative, likewise and from the outset, to establish the retention period of personal data and the justification for it, as well as the manner in which they will be carried out or the purposes that each of the “storage” serves, particularly what is understood by “permanent archive,” when in this context and in this particular processing, what is found in that document is omitted – as mentioned, such aspects are part of the authorizing regime for the processing of personal data and also respond to the core guarantee of the rights of the data subjects, not being mere discretionary executions.

34. Regarding this matter, Article 5, paragraph 1, item e) of the GDPR requires that personal data be “Kept in a form which permits identification of the data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods, provided that they are processed solely for archiving purposes in the public interest, or for scientific or historical research purposes or for statistical purposes, in accordance with Article 89, paragraph 1, subject to the application of appropriate technical and organizational measures required by this regulation, to safeguard the rights and freedoms of the data subject (‘storage limitation’);

35. If one is, therefore, faced with any of these exceptional situations, the particular requirements of Article 89 of the GDPR must be taken into account, and it should be clearly stated in the Proposal how these exceptions may be justified and how these processing continuations are guaranteed.

36. Finally, the formulation adopted in Annex II – “Consent Declaration” is questionable, where it is provided that, together with the consent, the data subject also waives “[...] from now on, any rights or compensations resulting from such use,” arising, namely, from “[...] the capture, use, and disclosure of images/audio and storage on the institutional website of the Municipality of Arganil (live and deferred online transmission), obtained during the sessions of the Municipal Assembly of Arganil [...].”

37. As also stated above, regarding consent, one cannot confuse the act of consent that may be given by the data subject for “capture, use, and disclosure of images/audio and

4 Available at <https://www.cnpd.pt/comunicacao-publica/noticias/diretriz-sobre-medidas-de-seguranca/> 3v.

PAR/2024/51

preservation on the institutional site of the Municipality of Arganil” taking advantage, in block and with the same

positive volitional act, if it is sought that the individual also renounces other rights that unequivocally belong to them, and that assume a different nature. It is referred to, at this point, what has been said regarding the principles that should regulate free consent.

38. Furthermore, this renunciation appears to be unlawful.

39. It must be borne in mind that Article 82 of the GDPR establishes an imperative regime of the right to compensation and liability, which corresponds to a specific subjective protection in the context of fundamental rights, reflecting what is provided for in Article 47 of the Charter of Fundamental Rights of the EU.

40. Moreover, this article does not leave any discretionary regime to the Member States that would allow for its exclusion, and it enjoys direct applicability in the Portuguese legal system, representing mandatory norms that can be invoked directly before national courts.

41. In fact, this is a manifestation of an ontological principle in data protection, namely the effective control of data by its holders, where, as a correspondence to the subjective nature of these rights, the heterotutela of adequate guarantees for their protection and reparation will be included – ubi ius, ibi remedium.

42. However, the same result would be reached if this issue were considered from the perspective of a right of exclusively internal origin, since the various situations that may give rise to liability are not uniform and may arise from various facts that originate liability, involving or not the participation of third parties who are not this particular data controller, so such renunciation, due to indeterminacy of object, would suffer from a defect.

43. It should be noted that the architecture of the GDPR is based on the principle of accountability, as enshrined in Article 5(2) of that Regulation, obligations that, situated within its exclusive legal sphere, the Municipality cannot disregard, as it is the data controller and, likewise, is burdened with ensuring compliance.

III. CONCLUSION

44. In terms and with the grounds presented, the CNPD recommends:

- a. Establish the right to revoke/retract the consent of data subjects, in accordance with the provisions of Article 7(3) of the GDPR;
- b. Adopt technical and security measures that ensure an adequate level of security relative to the risk, as prescribed in Article 32 of the GDPR;
- c. Set, in the aforementioned Proposal, the retention period for personal data and the reasons justifying it, as well as the manner in which they will be carried out or the purposes that each of the “storage” serves, namely what is understood by “permanent archive,” in this context and in this particular processing, establishing the respective regime.
- d. Eliminate the expression “[...] renouncing, from now on, any rights or compensations resulting from such use” contained in the consent declaration model – Annex II.

Approved at the meeting of October 22, 2024

Paula Meira Lourenço (President)

Signed by: PAULA CRISTINA MEIRA LOURENÇO

Date: 2024.10.22 20:28:18+01'00'

Certified by: Diário da República

Certified attributes: President - National Data Protection Commission

4v.